

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sebastian Saavedra	Team: Squad #1	CCRB Case #: 202003339	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 05/14/2020 1:55 AM	Location of Incident: § 87(2)(b)	Precinct: 30	18 Mo. SOL 11/14/2021	EO SOL 5/4/2022	
Date/Time CV Reported Sat, 05/16/2020 4:43 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 05/16/2020 4:43 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Ramon Reyes	03998	947395	PBMN SU
2. POM Gerardo Urbaez	02356	947561	PBMN SU
3. POM Mark Ruppert	22425	954305	PBMN SU
4. POM Steven Moran	02932	947275	PBMN SU
5. An Officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Presto	04236	954244	PBMN SU
2. POM Jose Tavaréz	02044	949716	PBMN SU

Officer(s)	Allegation	Investigator Recommendation
A.POM Steven Moran	Abuse: Police Officer Steven Moran questioned § 87(2)(b)	§ 87(2)(b)
B.POM Gerardo Urbaez	Abuse: Police Officer Gerardo Urbaez stopped § 87(2)(b)	§ 87(2)(b)
C.POM Steven Moran	Abuse: Police Officer Steven Moran stopped § 87(2)(b)	§ 87(2)(b)
D.POM Steven Moran	Force: Police Officer Steven Moran hit § 87(2)(b) against the ground.	§ 87(2)(b)
E.POM Steven Moran	Force: Police Officer Steven Moran used physical force against § 87(2)(b)	§ 87(2)(b)
F.POM Gerardo Urbaez	Force: Police Officer Gerardo Urbaez used physical force against § 87(2)(b)	§ 87(2)(b)
G.POM Steven Moran	Force: Police Officer Steven Moran restricted § 87(2)(b)'s breathing.	§ 87(2)(b)
H.POM Gerardo Urbaez	Force: Police Officer Gerardo Urbaez restricted § 87(2)(b)'s breathing.	§ 87(2)(b)
I.POM Steven Moran	Force: Police Officer Steven Moran used physical force against § 87(2)(b)	§ 87(2)(b)
J. An Officer	Force: An officer used physical force against § 87(2)(b)	§ 87(2)(b)
K.POM Mark Ruppert	Abuse: Police Officer Mark Ruppert searched § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
L.POM Gerardo Urbaez	Abuse: Police Officer Gerardo Urbaez frisked § 87(2)(b)	
M.POM Gerardo Urbaez	Abuse: Police Officer Gerardo Urbaez searched § 87(2)(b)	
N.SGT Ramon Reyes	Discourtesy: Sergeant Ramon Reyes spoke discourteously to § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On May 16, 2020, § 87(2)(b) filed this complaint with the CCRB via its call processing system.

On May 14, 2020, at approximately 1:55am, in front of § 87(2)(b) in Manhattan, Police Officer Gerardo Urbaez and Police Officer Steven Moran, of Patrol Borough Manhattan North Specialized Units, approached § 87(2)(b) and PO Moran asked him, “where’s the gun at?” (**Allegation A: Abuse of Authority** – § 87(2)(g) PO Urbaez and PO Moran then stopped § 87(2)(b) (**Allegations B and C: Abuse of Authority** – § 87(2)(g) A physical struggle resulted during which PO Moran knocked § 87(2)(b) to the ground, causing him to hit his head on the pavement (**Allegation D: Force** – § 87(2)(g) PO Moran placed his knee on § 87(2)(b) neck, and PO Urbaez knelt § 87(2)(b) in the ribs (**Allegations E and F: Force** – § 87(2)(g) and both actions restricted § 87(2)(b) breathing (**Allegations G and H: Force** – § 87(2)(g) PO Moran pushed § 87(2)(b) arm up towards his shoulder, causing him pain (**Allegation I: Force** – § 87(2)(g) An officer whom § 87(2)(b) could not see, bent § 87(2)(b) finger backwards (**Allegation J: Force** – § 87(2)(g)). Police Officer Mark Ruppert, of Patrol Borough Manhattan North Specialized Units, reached inside § 87(2)(b) backpack and PO Urbaez patted § 87(2)(b) down, and reached inside his jacket pocket (**Allegations K, L, and M: Abuse of Authority** – § 87(2)(g) Sergeant Ramon Reyes, of Patrol Borough Manhattan North Specialized Units, and told § 87(2)(b) “alright fuck it, you can go through the system, go fuck yourself” (**Allegation N: Discourtesy** – § 87(2)(g) § 87(2)(g), § 87(4-b)

§ 87(2)(b) was arrested for § 87(2)(b) (Board Review 23).

Body-worn camera (BWC) footage was obtained for this case (Board Reviews 01, 02, 03, 04, 05 and 06). The footage does not capture the entire incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Steven Moran questioned § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Gerardo Urbaez stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Steven Moran stopped § 87(2)(b)

§ 87(2)(b) testified that, at approximately 1:30 am on May 14, 2020, § 87(2)(b) cousin dropped § 87(2)(b) off in front of his building at § 87(2)(b) in Manhattan. § 87(2)(b) was carrying a large brown paper grocery bag containing approximately half a pound of loose marijuana. For approximately twenty minutes, § 87(2)(b) pressed the doorbells for various apartments in the building, as he had recently moved in and had not been issued an access card for the building. § 87(2)(b) stated that, during this time, he did not speak with or otherwise interact with anyone and did not observe anyone in his vicinity. § 87(2)(b) consumed three shots of Hennessy cognac approximately one-and-a-half hours prior but was aware of his surroundings. § 87(2)(b) observed a black Toyota Camry with tinted windows pull up nearby, and PO Moran exited and approached him and peered into the open paper bag, which was on the ground, without saying anything. § 87(2)(b) interpreted PO Moran’s behavior to mean that he wanted to start an altercation or fight. § 87(2)(b) backed away from PO Moran, who was not wearing a mask, and told him that he lived in the building. PO Moran said, “where’s the gun at?” § 87(2)(b) asked what PO Moran was referring to. PO Moran told § 87(2)(b) that he had overheard § 87(2)(b) yell that he had a forty-caliber gun from across the street, and asked § 87(2)(b) why he was “moving funny” and fidgeting with his fanny pack. § 87(2)(b) replied, “are you serious? You know me, I don’t do guns, we are not doing this, you didn’t ask me for identification, and you didn’t ask me what I was doing here.” § 87(2)(b) then continued pressing the doorbells. § 87(2)(b) was familiar with PO Moran as he had patrolled his neighborhood for several years but

had not had direct contact with him prior. PO Moran immediately slammed § 87(2)(b) onto the sidewalk (see allegation D), and PO Moran and PO Urbaez then physically restrained § 87(2)(b) (Board Review 07).

PO Urbaez testified that he and PO Moran were patrolling near the incident location, which was an area with a high incidence of car break-ins. PO Urbaez and PO Moran overheard § 87(2)(b) and another individual having an argument, during which § 87(2)(b) said that he had a “40,” which PO Urbaez understood to mean a .40 caliber firearm. The other individual then left, and § 87(2)(b) began knocking on the door of § 87(2)(b) screaming to “let [him] in.” PO Urbaez did not recall how long he did this, nor whether other civilians were nearby at the time, but stated that, shortly thereafter, he and PO Moran made a simultaneous decision to approach § 87(2)(b). PO Urbaez stated he made this decision based on § 87(2)(b) mention of a weapon and the amount of noise he was making, which led him to believe he might be trying to break into the building. PO Moran and PO Urbaez approached § 87(2)(b). PO Urbaez did not observe any bulges on his person. PO Urbaez observed a 12-inch, clear bag containing what appeared to be approximately one pound of marijuana on the floor next to § 87(2)(b). Based on this, PO Urbaez and PO Moran then approached § 87(2)(b) to arrest him, and both grabbed hold of him. PO Urbaez did not recall discussing whether § 87(2)(b) had a gun with him during this incident (Board Review 08).

PO Moran testified that he and PO Urbaez were sitting in their car approximately 20 to 30 feet away from § 87(2)(b) when they heard him arguing with an individual. § 87(2)(b) said, “I have a 40,” which PO Moran stated he understood to mean that he had a 40-caliber firearm due to the aggressive nature in which he said it and because PO Moran observed § 87(2)(b) hold up a bookbag during this argument. PO Moran did not recall whose decision it was to approach § 87(2)(b). PO Moran and PO Urbaez walked towards § 87(2)(b). PO Moran stated that the area around § 87(2)(b) smelled like alcohol. § 87(2)(b) said to PO Moran, “you know me, why are you doing this?” § 87(2)(b) did not appear to be carrying any sort of weapon or have any sort of bulge on his person. PO Moran and PO Urbaez grabbed § 87(2)(b) hands and stopped him. PO Moran did not specify whether he asked § 87(2)(b) about a gun (Board Review 09).

Sgt. Reyes’ BWC footage opens with him exiting his car and approaching the front of § 87(2)(b). PO Urbaez appears to be holding on to § 87(2)(b) while the latter is already on the ground on the stairs to the building. As Sgt. Reyes approaches, a small black backpack is observed on the ground to the right of § 87(2)(b) and what appears to be a brown paper bag is on the steps near § 87(2)(b) feet. At 02:35 a clear plastic bag is observed at the top of the landing behind where § 87(2)(b) was on the ground. At 02:50, PO Urbaez says, “you were the one screaming it, you’re the one saying I got a 40 cal and fighting with a dude.” § 87(2)(b) replies, “you’re bugging the fuck out.” (Board Review 01). PO Urbaez and PO Moran’s BWC footage opens after § 87(2)(b) is already handcuffed and is otherwise consistent with what is captured on Sgt. Reyes’ BWC. (Board Reviews 02 and 05).

Officers vouchered 1 large plastic bag containing vegetative marijuana as arrest evidence and noted that it was recovered from the ground (Board Review 24).

Officers may approach and request information based on an objective credible reason, not necessarily indicative of criminality. They may ask an individual questions related to possible criminal activity if they possess a founded suspicion that such activity is afoot. Officers may stop an individual if they have reasonable suspicion that the individual has committed or is about to commit a crime, People v. De Bour 40 N.Y.2d 210 (Board Review 11).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation (D) Force: Police Officer Steven Moran hit § 87(2)(b) against the ground.

Allegation (E) Force: Police Officer Steven Moran used physical force against § 87(2)(b).

Allegation (F) Force: Police Officer Gerardo Urbaez used physical force against § 87(2)(b).

Allegation (G) Force: Police Officer Steven Moran restricted § 87(2)(b)'s breathing.

Allegation (H) Force: Police Officer Gerardo Urbaez restricted § 87(2)(b)'s breathing.

Allegation (I) Force: Police Officer Steven Moran used physical force against § 87(2)(b).

Allegation (J) Force: An officer used physical force against § 87(2)(b).

§ 87(2)(b) provided a phone statement on May 18, 2020. § 87(2)(g) it included no mention of officers placing their knee on any part of his body, or otherwise restricting his breathing (Board Review 19).

On June 8, 2020, § 87(2)(b) testified that, immediately after asking him where the gun was, PO Moran slammed § 87(2)(b) onto the floor where he hit his head onto the pavement, resulting in scrapes to the right side of his face. § 87(2)(b) landed on the ground on his side. § 87(2)(b) observed two additional unmarked police cars arrive, and several officers exit and approach him. § 87(2)(b) did not physically resist and asked what was happening. PO Moran held § 87(2)(b) face to the ground and placed his knee on the back of § 87(2)(b) neck. PO Urbaez approached them, knelt § 87(2)(b) in the ribs, and slid his knee onto § 87(2)(b) back. § 87(2)(b) said, “excuse me, I can’t breathe, I can’t move, I’m not resisting, this is not right. Get me up, do something.” § 87(2)(b) was lying on his side at this time and squirmed his body in an attempt to move onto his stomach so he could breathe more easily. PO Moran removed his knee from § 87(2)(b) neck, but PO Urbaez kept his knee on his back, which made it difficult for § 87(2)(b) to breathe. PO Moran pushed § 87(2)(b) arm up towards § 87(2)(b) shoulder and said, “stop moving, calm down.” § 87(2)(b) again told PO Moran that he could not breathe, and that PO Moran was hurting his arm. Another officer whom § 87(2)(b) could not see grabbed one of § 87(2)(b) fingers and bent it backwards. Officers then handcuffed § 87(2)(b) and rolled him back onto his side (Board Review 07).

§ 87(2)(b) arrest photo shows some possible minor redness and swelling on his right cheek § 87(2)(g) (Board Review 25). His medical records show that he visited § 87(2)(b) on § 87(2)(b), complaining of upper back pain resulting from an officer having placed a knee on his back and neck. § 87(2)(b) was discharged that same day and given painkillers (400mg of Ibuprofen) (Board Review 19).

BWC from PO Moran, PO Urbaez, and Sgt. Reyes begins after § 87(2)(b) is already on the ground. When PO Moran's video begins, § 87(2)(b) is in a seated position. PO Urbaez's video opens with § 87(2)(b) in a seated position just before the officers assist him to a standing position. § 87(2)(b) is also in a seated position when Sgt. Reyes approaches. The footage does not show any officer push § 87(2)(b) head onto the ground, put a knee on his neck, knee his back, pull § 87(2)(b) arm behind his back, bend his fingers, or capture § 87(2)(b) complaining of any pain or difficulty breathing (Board Reviews 02 and 05).

PO Urbaez testified that, once he grabbed § 87(2)(b) § 87(2)(b) pulled his arms away from PO Urbaez, tensed his body, and began screaming, though PO Urbaez did not recall what he was saying. PO Urbaez called for backup over the radio. PO Urbaez and § 87(2)(b) lost their balance and fell to the ground as they stood on some stairs outside the building. PO Urbaez denied pushing § 87(2)(b) to the ground. PO Urbaez did not recall § 87(2)(b) hitting his head on the sidewalk at any point. PO Urbaez did not recall placing his knee on § 87(2)(b) neck or back at any point, nor seeing any other officer do so. PO Urbaez did not recall § 87(2)(b) complaining of any pain or injuries during this incident, nor of having any difficulty breathing. Two to three minutes later, additional officers arrived, including Sgt. Reyes, PO Presto, and PO Ruppert. § 87(2)(b) was still on the ground, and PO Moran and PO Urbaez handcuffed him and stood him up. (Board Review 08).

PO Moran testified that he placed his hands on § 87(2)(b) around the same time as PO Urbaez, though PO Moran did not recall what he did specifically. § 87(2)(b) twisted and contorted his body, apparently in an attempt to free himself from PO Moran's grasp. PO Moran brought § 87(2)(b) to the ground, in order to gain greater control over him, which was consistent with his training. PO Moran or PO Urbaez called for backup over the radio. Additional officers arrived, including Sgt. Reyes, and assisted in handcuffing § 87(2)(b). Officers then brought § 87(2)(b) to a police car. PO Moran did not recall § 87(2)(b) complaining of any injuries or pain at any point during this incident. PO Moran did not see § 87(2)(b) hit his head on the ground. § 87(2)(b) did not complain of any difficulty breathing at any point. PO Moran denied placing his knee on § 87(2)(b) back or neck at any point or seeing PO Urbaez do so (Board Review 09).

Sgt. Reyes did not observe § 87(2)(b) hit his head on the ground at any point and did not observe PO Urbaez or PO Moran place their knee on § 87(2)(b) neck, back, or any other part of his body at any point (Board Review 10).

Officers are permitted to use only the reasonable amount of force necessary to gain control of a subject. Additionally, officers should avoid actions which may result in chest compression, such as sitting, kneeling, or standing on a subject's chest or back and thereby reducing the subject's ability to breathe, NYPD Patrol Guide 221-02 (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (K) Abuse of Authority: Police Officer Mark Ruppert searched § 87(2)(b)

Allegation (L) Abuse of Authority: Police Officer Gerardo Urbaez frisked § 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer Gerardo Urbaez searched § 87(2)(b)

§ 87(2)(b) testified that, once he was handcuffed, he remained lying on the sidewalk for some time, during which time PO Moran looked into the brown paper bag. PO Moran reached into § 87(2)(b) left jacket pocket and took out approximately 20 baggies of cocaine and approximately eight baggies of heroin. PO Moran then reached into § 87(2)(b) left jacket pocket and took out approximately \$360 in cash. Officers then lifted § 87(2)(b) to his feet by his handcuffs. Officers then escorted § 87(2)(b) to the stationhouse (Board Review 07).

At 01:04 in PO Ruppert's BWC footage, just after § 87(2)(b) is handcuffed, PO Ruppert feels the outside, then opens two zippered areas of § 87(2)(b) backpack and reaches inside with a flashlight (Board Review 03). PO Urbaez's BWC opens the moment he and PO Moran lift § 87(2)(b) to his feet once he is already handcuffed. PO Urbaez can then be seen patting § 87(2)(b) down around his waist, the front of his pants, and his left leg. PO Urbaez reaches into § 87(2)(b) left jacket pocket and removes what appears to be a cell phone and several small plastic bags. At 01:00, the audio begins. At approximately 02:10, PO Urbaez picks up several objects off the ground. At 02:56, PO Urbaez opens and looks inside the small backpack on the ground next to § 87(2)(b) (Board Review 05).

Officers may search an individual incident to a lawful arrest, People v. De Bour 40 N.Y.2d 210 (Board Review 11).

§ 87(2)(g)

Allegation (N) Discourtesy: Sergeant Ramon Reyes spoke discourteously to § 87(2)(b)

§ 87(2)(b) did not allege any discourtesy by Sgt. Reyes. It was captured on BWC and pled accordingly. This interaction took place during the COVID-19 pandemic.

Sgt. Reyes' BWC shows Sgt. Reyes speaking to § 87(2)(b) after handcuffing him. At 03:57, Sgt. Reyes takes a protective medical mask from his car, and approaches § 87(2)(b) and tells him they will place it on him for his own safety due to COVID. § 87(2)(b) says he will not put on the mask. § 87(2)(b) says he only wants to talk to Sgt. Reyes who then says if § 87(2)(b) puts on the mask, they will talk like gentlemen. § 87(2)(b) says he did not do anything. At 05:05, Sgt. Reyes says, "what do you mean, we got you already, look at this shit, look at all that fucking weed. I'll put you through for that shit, I don't give a fuck." § 87(2)(b) says, "alright then." At 05:27, Sgt. Reyes holds the mask up to § 87(2)(b) face, and § 87(2)(b) turns his face away. Sgt. Reyes says, "you don't wanna put on the mask?" Sgt. Reyes again holds the mask up to § 87(2)(b) face, and he again turns his face away. Sgt. Reyes says, "alright fuck it, you can go through the system." § 87(2)(b) says, "can you look at me?" Sgt. Reyes says, "no you're going to fucking court, go fuck yourself buddy" (Board Review 01).

Upon being shown his BWC, Sgt. Reyes acknowledged making these statements to § 87(2)(b). Sgt. Reyes stated that he was using street slang to emphasize to § 87(2)(b) that the nature of their interaction going forward would depend on § 87(2)(b) level of cooperation, and to de-escalate the situation (Board Review 10).

Officers are required to maintain a higher standard of integrity than is generally expected of others, value human life, respect the dignity of each individual, and render services with courtesy and civility, NYPD Patrol Guide Procedure 200-02 (Board Review 13).

Officers may use language which would ordinarily be inappropriate with civilians during a

violent confrontation. An officer was found not to have committed misconduct when he cursed at a resisting civilian and in the context of gaining compliance with a lawful order, DAO-DCT case 2017-17276 (Board Review 14). Officers may not use unprofessional language or language designed to demean someone, DAO-DCT case 2018-18951 (Board Review 15).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one prior CCRB complaint, and was named as a victim in three allegations:
 - § 87(2)(b)
- PO Urbaez has been a member-of-service for 13 years and has been a subject in four other CCRB complaints and seven allegations, of which two were substantiated:
 - CCRB 201500911 involved substantiated allegations of frisk and question. The Board recommended formalized training and the NYPD imposed the same.
 - § 87(2)(g)
- PO Moran has been a member-of-service for 13 years and has been a subject in 10 other CCRB cases and 19 allegations, of which one was substantiated:
 - 201608020 involved a substantiated allegation of force. The Board recommended formalized training and the NYPD imposed the same.
 - § 87(2)(g)
- Sgt. Reyes has been a member-of-service for 13 years and has been a subject in six other

CCRB cases and 14 allegations, of which five were substantiated:

- CCRB 201907371 involved substantiated allegations of frisk, search, vehicle search, and discourtesy. The Board recommended command discipline A and the NYPD has not yet imposed discipline.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a notice of claim with the City of New York claiming several damages not mentioned in his testimony to the CCRB and seeking \$2,000,000 in redress. A FOIL request for any 50H testimony provided about this claim has been filed with the New York City Comptroller's office and denied. § 87(2)(b) attorney declined to provide this testimony (Board Review 17).

[illegible]

Squad: 1

Investigator: Inv. Saavedra 3/16/2022
Signature Print Title & Name Date

[illegible]

Reviewer: _____

_____ Signature	_____ Print Title & Name	_____ Date
--------------------	-----------------------------	---------------